Certified divorce planners are professionals who give financial advice that lawyers aren’t qualified to give, such as the short- and long-term financial impact of a proposed divorce settlement, tax consequences, dividing retirement plans, and stock option or insurance issues. They serve as your advocate in achieving a financially equitable divorce settlement.

Child Support

If your marriage is headed for divorce and you’re the custodial parent, file for child support as soon as you and your spouse separate. Your spouse has no legal obligation to pay child support unless there’s a court order from a divorce, marriage dissolution, establishment of paternity, or legal separation. An attorney or your local child support agency can help you get a court order. Child support judgments are issued as of the date of filing and are not retroactive.

Unfortunately, having a court order is not always enough. The Association for Children for Enforcement of Support (ACES) estimates that there’s $41 billion in unpaid child support for over 30 million children in the United States. If your ex-spouse is delinquent in child support, the Child Support Enforcement Agency (CSEA) in your state is required to help you collect payment by serving your ex-spouse with papers requiring him or her to meet with the district attorney and arrange a payment schedule. If your ex-spouse refuses, he or she could serve jail time. The CSEA will provide you with a free attorney if necessary.

Other measures include taking the parent’s tax refund, garnishing wages, taking unemployment insurance proceeds, seizing assets, suspending a professional or business license, and in some states, revoking a driver’s license. The government can even take your lottery winnings if you owe back child support. If your spouse lives out of state, there are methods of locating him or her and having the courts in the two states work together to enforce the child support judgment.

Tax Consequences of Divorce

Generally, alimony is tax deductible to the spouse who pays and is included in the taxable income of the recipient spouse. However, just